

INTEROFFICE COMMUNICATION
San Mateo Police Department
Investigations Services

Date: July 22, 2022
To: All Sworn Personnel
From: Lt. Todd Mefford

Sergeant	_____
Lieutenant	_____
Field Ops Captain	_____
Support Captain	_____
Chief	_____

Re: MANDATORY REASON FOR ALPR QUERIES

We are fortunate to have access to ALPR technology, but this technology is under constant public scrutiny because of the related privacy perceptions. Our department regularly receives Public Record Act (PRA) requests for audit information, and we must comply and provide. During a recent audit process of our departmental usage of the Flock and Vigilant search platforms, there continues to be unacceptable entries for the REASON for your search.

Effective immediately, inadequate entry of the REASON for your ALPR query will result in the suspension of your access to the databases and receipt of a Record of Discussion (ROD). Remedial training is required for reinstated access. Two previous memos and in person lineup training described the importance of entering an adequate explanation for the reason for the search and gives a few examples. This is the single most important entry when querying our ALPR database because California Civil Code states you shall provide your justification for your query. This is equivalent to a CLETS violation as we are required to have a reason and authority to access that information. Below is the California Civil Code outlining the requirements for justified use of an ALPR database.

California Civil Code § 1798.90.52 states if an ALPR operator accesses or provides access to ALPR information, the ALPR operator SHALL do both of the following:

(a) Maintain a record of that access. At a minimum, the record shall include all of the following:

- (1) The date and time the information is accessed.*
- (2) The license plate number or other data elements used to query the ALPR system.*
- (3) The username of the person who accesses the information, and, as applicable, the organization or entity with whom the person is affiliated.*
- (4) The purpose for accessing the information.*

(b) Require that ALPR information only be used for the authorized purposes described in the usage and privacy policy required by subdivision (b) of Section 1798.90.51.

REASON:

All personnel that query an ALPR database shall provide one or more of the following for the reason for the query:

- 1) Case or Incident number associated with the query.
- 2) **If no Case or Incident number**, a specific crime code or name of the crime and the vehicle description will be entered. Additional info is encouraged. Examples:
 - a. Belmont 211 veh white BMW
 - b. Belmont robbery white BMW
 - c. Rite Aid burglary white BMW
 - d. 459 vehicle just occurred Bridgepoint

DISPATCH:

When querying an ALPR database for an SMPD officer, include the requesting officer's name and case or incident number. Requests to Dispatch from outside agencies will be approved by a supervisor. Once approved, Dispatch will make the query, or it can be assigned to an officer for completion.

OUTSIDE AGENCY REQUESTS:

Requests to Dispatch from outside agencies will be approved by a supervisor. Once approved, Dispatch will make the query, or it can be assigned through the Watch Sergeant to an officer for completion. When making that query the dispatcher/officer shall include:

- 1) Agency Name
 - 2) Requestors Name
 - 3) Case or Incident Number
- Example: "RWC Ofc Smith 220723022"

If there is no case or incident number, the query will not be completed.

Bring any questions or concerns to your supervisor so the ALPR Committee can address it ASAP.